LEO ELECTRICAL
versus
ROSEMARY NYAHUYE(in her personal capacity and in her capacity as the Executor Dative of the Estate of the Late Farayi Benjamin Njiwah)
and
THE MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MUNANGATI-MANONGWA J
HARARE, 15 June and 2 July 2026

Civil Trial

P C Paul, for the plaintiff
Adv R H Goba, for the 1st defendant

MUNANGATI-MANONGWA J: This matter does not mark the first time that the parties have tussled in court over the immovable property stand 3131 Dzivarasekwa Township of Dzivarasekwa**.** The parties have been in this court before and ended up in the Supreme Court which determined a matter pertaining to a contractual relationship that existed between the parties. Suffice that *in casu*, the parties have sought to drag in that supreme court judgment, in the process revealing each party's understanding of the import of the supreme court order.

The plaintiff herein is the registered owner of a certain piece of land called stand 3131 Dzivarasekwa Township of Dzivarasekwa. The plaintiff issued summons for an order for the eviction of the defendant on the basis that the defendant is in possession of its property and it now requires possession. The plaintiff bases its claim on *rei vindicatio.* The first defendant has raised a plea in bar. The first defendant has maintained that the following three preliminary objections can dispose off the matter without further ado, these being:

a) that the Estate of the Late Farayi Benjamin Njiwah has not been properly cited;
b) that the matter is *res judicata* following the judgment of the Supreme Court under SC 11/23; and
c) that the Plaintiff's present claim has prescribed.

Whether the Estate was properly cited

The first defendant argues that the proceedings are fatally defective because the plaintiff cited Rosemary Nyahuye notwithstanding that she had ceased to be executrix and had been replaced by Richard Manwick Dhaka. Mr *Goba* for the defendant contended that the plaintiff was well aware of this development as early as 2023 as would reflect in a matter involving the parties SC 386/20. He contended that the plaintiff was informed of the development and yet plaintiff failed to withdraw the proceedings and bring the proper defendant before the court. This was denied by the plaintiff who through his counsel Mr *Paul* argued that letters of a *curator bonis* were produced but there was never a production of the any letters of administration or executorship. In that regard an appointment of an executor was never made.

The legal position is settled that a deceased estate has no legal personality separate from its executor. In terms of s 25 of the Administration of Estates Act [*Chapter 6:01*], a deceased estate can only sue or be sued through a duly appointed executor or executrix. The authorities cited by the first defendant, including *Estate Late Ngavaite Jack Chikuni & Ors* v *James Chikuni & Ors* HB 143/21 and *Cosma Chiangwa* v *David Katerere & Ors* SC 61/21, correctly state that the executor must be cited by name.

The question, however, is whether the defect is fatal in the circumstances of this case. The plaintiff's claim is directed against the estate of the late Farayi Benjamin Njiwah. The estate itself is identifiable. The present plea in bar and heads of argument have been filed by the executor presently administering the estate, namely Richard Manwick Dhaka. There is therefore no prejudice arising from uncertainty as to the party intended to be sued. Courts have consistently distinguished between misdescription of a party; and citation of an entirely wrong party. Where the wrong legal person is sued, proceedings may be a nullity. However, where the intended litigant is ascertainable and has participated in the proceedings, the defect is ordinarily curable by amendment.

The court notes that the first defendant does not contend that the Estate of the Late Farayi Benjamin Njiwah is not the intended defendant. Rather, the complaint is that the incorrect representative was named. It does not escape the court’s attention that the allegation that no letters of appointment of Mr Dhaka were ever produced was never disputed. Without any letters of administration or proof of executorship it cannot be said that the plaintiff was

aware of this change formally. Mr *Goba* has referred to the Supreme Court case involving the parties where the heading of the case appears as,

> "ROSEMARY NYAHUYE (in her capacity as the Executrix Dative of the Estate Late Farayi Benjamin Njiwah (DR4397/99) replaced by RICHARD MANWICK DHAKA."

No proof of the notice of change was presented to court. In the court's view, the defect is one of citation rather than substance. The estate remains before the court through its duly appointed executor who has entered appearance and actively opposed the proceedings.

Accordingly, it cannot be said that the proceedings are a nullity. The point *in limine* based on improper citation therefore fails.

Whether the matter is *res judicata*

The first defendant's principal argument is that the present proceedings seek to achieve indirectly what the plaintiff failed to obtain in HC 14262/12 and subsequently in SC 11/23.Mr *Goba* for the defendant argued that the plaintiff had sought cancellation of the agreement of sale which it lost in the Supreme Court. Suffice that the claim was held to have prescribed. He contended that the plaintiff's cause of action which the Supreme Court decided upon was anchored on ownership wherein plaintiff sought ejectment of a party in possession of its property. Given that background, Mr *Goba* submitted that *in casu* the parties are the same as in the Supreme Court case, the cause of action is the same which is ownership and the relief is the same. That being so, he contended that the plaintiff seeks to reopen a case which was disposed off by the Supreme Court. Mr *Paul* for the plaintiff contended that the cause of action is not the same as the initial claim was based on a contractual relationship. He stated that the difference *in casu* lies in the fact that the current claim is anchored on ownership rights particularly *rei vindicatio.*

The requirements of *res judicata* are well established being that: the parties, the cause of action and the relief sought has to be the same. There is no serious dispute regarding the identity of the parties. The dispute concerns the latter two requirements being the cause of action and the relief sought.

A look at the previous proceedings reveals that in HC 14262/12 the Plaintiff sought:

i. confirmation of cancellation of the agreement of sale; and
ii. ejectment of the Defendant from Stand 3131 Dzivarasekwa Township.

Further, the defendant thereto counterclaimed for transfer of the property. The High Court granted judgment in favour of the plaintiff. On appeal, the Supreme Court upheld the special plea of prescription and dismissed the plaintiff's claim. A critical feature of SC 11/23 is that the Supreme Court disposed of the matter on prescription. It did not grant the defendant's counterclaim for transfer of the property. Nor did it make a declaration that ownership had passed to the defendant. For clarity purposes the Supreme Court order reads as follows:

1. "The appeal succeeds with costs.
2. The order of the court a quo be and is hereby set aside and in its place substituted the following:

   "It is ordered that the plaintiff's claim be and is hereby dismissed with costs"

Given the aforegoing, plaintiff correctly points out that although transfer was sought in the notice of appeal and counterclaim, the Supreme Court neither granted nor determined that relief. That issue therefore remains unresolved. The defendant submitted that because the Supreme Court upheld the appeal without qualification, the counterclaim must be taken to have succeeded by necessary implication. The Court is unable to accept that submission. An appellate court grants the relief contained in its order. Where no order compelling transfer of property was made, this court cannot infer that such relief was silently granted. The absence of any express order on the counterclaim militates against the proposition that the issue has already been finally determined

Vis the cause of action

The previous action was founded upon an agreement of sale and an alleged cancellation thereof. The declaration referred to breach of the terms of the agreement of sale as the basis for the severance of the agreement between the parties. The present action is pleaded as an action *rei vindicatio* founded upon ownership. The court finds that distinction to be important. A contractual claim depends upon contractual rights. A *rei vindicatio* depends upon ownership and the owner's right to recover possession from a possessor. In argument Mr *Paul* for the plaintiff was clear on this issue and he was legally correct. The Supreme Court judgment repeatedly dealt with the running of prescription from the due date of the last instalment under the agreement of sale. That analysis is characteristic of a contractual claim. The Supreme Court even held that:

"In cases involving instalments, prescription begins to run when the last date of instalment is due."

It is clear to this court that the focus of the judgment was therefore contractual prescription. The Supreme Court did not determine whether the Plaintiff remained owner of the property. Neither did it determine whether a vindicatory claim was available. It follows that the cause of action in the present proceedings is not identical to the cause of action previously determined.

The doctrine of *res judicata* prevents re-litigation of an issue already finally determined. This court is also conscious of the fact that s 24 and 26 of the Supreme Court Act states that decisions of the Supreme are final and a judgment of the Supreme Court is to be enforced in any court. However, the issue determined in SC 11/23 was whether the plaintiff's contractual claim founded upon cancellation of the agreement could succeed. That issue was finally determined. The issue now raised is whether, notwithstanding the contractual outcome, the plaintiff as registered owner may vindicate the property. That issue was not finally determined by the Supreme Court. It is due to the above reasons that this court finds that the requirements of *res judicata* have not been fully established. The plea of *res judicata* accordingly fails.

Whether the Plaintiff's claim has **prescribed**

During the preparation of this judgment, it became apparent that the parties had not fully addressed the question whether the present vindicatory claim was itself susceptible to prescription. The court accordingly invited supplementary submissions limited to that issue. Both parties duly complied.

The first defendant submits that the present action is prescribed for two principal reasons. Firstly, it argues that the Supreme Court already determined that any further proceedings by the plaintiff would be prescribed. Secondly, it contends that although ownership generally does not prescribe, the plaintiff cannot invoke the *actio rei vindicatio* because the defendant remains in possession under an extant agreement of sale, which agreement the plaintiff unsuccessfully sought to cancel. Counsel relied extensively on *Chetty* v *Naidoo* 1974 (3) SA 13, arguing that a person in possession under a contractual right cannot be ejected by means of the *rei vindicatio* while that contractual right subsists. It was further submitted that the Supreme Court's order upholding the appeal necessarily had the effect of

validating the defendant's counterclaim for transfer of the property and that the plaintiff is estopped from asserting ownership.

The plaintiff, on the other hand, argues that the plea of prescription is fundamentally defective because it was not specially pleaded. Paragraph 9 of the plea merely states that any action by the plaintiff "is prescribed as determined by the Honourable Supreme Court." It is submitted that the Supreme Court made no such determination. Counsel further argued that the present action is distinguishable from the contractual claim previously litigated and that the subsequent decision of the Supreme Court in *Elizabeth Chidzombwo* v *Minister of Local Government, Public Works and National Housing* SC 64/22 demonstrates that a vindicatory claim does not prescribe merely because more than three years have elapsed. The plaintiff's first submission has merit. Prescription is a special plea which must set out the factual and legal basis upon which it is relied. A bare assertion that a claim is prescribed because of an earlier judgment does not identify the debt relied upon, when prescription allegedly commenced to run or why the present cause of action falls within the Prescription Act. The plea as framed appears more as an extension of the plea of *res judicata* than an independent plea of prescription.

Even assuming, however, that the plea was sufficiently pleaded, it cannot succeed. The starting point is that the Supreme Court did not determine that a vindicatory claim had prescribed. The order granted simply upheld the appeal and substituted the High Court's judgment with one dismissing the plaintiff's claim. The reasoning of the Supreme Court centred entirely upon prescription of the contractual cause of action arising from the agreement of sale. The court repeatedly analysed when the last instalment became due and when prescription commenced to run under the contract. At no stage did it determine that ownership had been extinguished or that a future action founded upon ownership would likewise prescribe.

The defendant's submission therefore requires this court to infer findings that the Supreme Court itself did not express. This court is not at liberty to enlarge the effect of a superior court's judgment beyond what that court actually decided.

The defendant's reliance upon *Chetty* v *Naidoo* is likewise misplaced in the present context. That decision undoubtedly establishes that an owner seeking vindication need only prove ownership and possession by the defendant, whereupon the burden shifts to the defendant to establish a right to continue possessing the property. It equally recognises that

where possession is founded upon an existing contractual right, such right constitutes a defence to vindication.

However, those principles concern the substantive merits of a vindicatory action. They do not convert a vindicatory claim into a prescribed debt under the Prescription Act. It is not, however, a basis upon which the present action can be dismissed *in limine* as prescribed.

The defendant further submits that the agreement of sale remains extant because the plaintiff failed to prove cancellation and because the Supreme Court must be taken to have upheld the defendant's counterclaim for transfer. This court cannot agree.

The Supreme Court was undoubtedly aware of the counterclaim. Nevertheless, the order it granted is confined to allowing the appeal and dismissing the plaintiff's claim. It neither ordered transfer of the property nor granted specific performance of the agreement of sale. Had it intended to grant such relief, one would ordinarily have expected an express order to that effect. Courts speak through their orders. This court cannot imply relief which the appellate court itself did not expressly grant.

The plaintiff also relied on the subsequent decision in *Elizabeth Chidzombwo* v *Minister of Local Government* SC 64/22. In that matter, the Supreme Court distinguished its earlier decision in *Conradie Trust* v *Kushondo Schools Trust* SC 12/17 and upheld a vindicatory claim notwithstanding the lapse of more than three years because ownership had been admitted. While that decision does not overrule *Conradie*, it demonstrates that the application of prescription to vindicatory claims depends upon the nature of the right asserted and the issues actually in dispute.

In the present matter, the defendant's defence throughout the previous litigation was not that the plaintiff had ceased to be the registered owner. Rather, the defence was that the purchase price had been fully paid and that transfer ought to be effected. Whether that defence ultimately entitles the defendant to resist vindication is an issue for determination at trial. It does not establish that the plaintiff's vindicatory action has itself prescribed.

Accordingly, this court is satisfied that the order of the Supreme Court is clear as it did not determine that a vindicatory claim had prescribed. Equally, the plea of prescription, as pleaded, is deficient. In any event, the authorities relied upon by the defendant address the substantive merits of the plaintiff's claim rather than the operation of prescription. The special

plea of prescription therefore cannot succeed. Accordingly, the special plea of prescription has no merit and ought to fail.

Whether the plaintiff's hands are dirty?

The first defendant in his papers seeks that the court refuse to hear the plaintiff on the basis that its hands are dirty. The first defendant further argues that the plaintiff has not satisfied the costs order granted in the previous proceedings and should therefore not be heard. The plaintiff correctly points out that there is no evidence before the court that the costs have been taxed or that execution has been pursued. The mere existence of an unpaid costs order does not automatically bar a litigant from approaching the court. The first defendant's counsel Mr *Goba* upon consultation with his instructing attorney, conceded that given that the costs had not been taxed it cannot be said there is wilful and contemptuous non-compliance with a court order. In that regard such an objection was abandoned and rightly so.

Accordingly, it is ordered as follows:

1. The first defendant's plea in bar based on improper citation be and is hereby dismissed.
2. The first defendant's plea of *res judicata* be and is hereby dismissed.
3. The first defendant's plea of prescription be and is hereby dismissed.
4. The matter shall proceed to trial on merits in terms of the rules.
5. Costs of the plea in bar shall be borne by the first defendant.

MUNANGATI-MANONGWA J:……

Wintertons, Plaintiff's Legal Practitioners
Ziumbe & Partners, Defendant's Legal Practitioners